

HOUSE No. 5484

The Commonwealth of Massachusetts

PRESENTED BY:

Hadley Luddy and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prohibit the application of fertilizer in the town of Eastham.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>6/3/2026</i>

HOUSE No. 5484

By Representative Luddy of Orleans and Senator Cyr, a joint petition (accompanied by bill, House, No. 5484) of Hadley Luddy (by vote of the town) for legislation to prohibit the application of fertilizer in the town of Eastham. Environment and Natural Resources. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prohibit the application of fertilizer in the town of Eastham.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Notwithstanding any General or Special Law to the contrary, including but not
2 limited to any General or Special Law conferring exclusive authority upon the Department of
3 Agriculture to regulate and control the application of fertilizers elsewhere in the Commonwealth,
4 the application of fertilizer containing nitrogen or phosphorus, or any other pollutants in the
5 Town of Eastham is prohibited, except for commercial agricultural purposes and the residential
6 use of organic fertilizer with low nitrogen and phosphorus for use in growing fruits and
7 vegetables.

8 Section 2. This act shall take effect upon its passage.